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The Psychological Allure of Alford:**Does Wanting to Appear Innocent Put Innocents at Risk?**

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Abstract

Objective: The Alford plea allows defendants to maintain innocence while pleading guilty, but this option is largely unknown to the public, and its effects are unknown to researchers and practitioners. Some legal scholars have argued that the Alford plea may attract innocent defendants who may not otherwise accept a plea, whereas others have asserted that it offers a beneficial alternative for those wanting to preserve their reputations and avoid the more severe consequences of a trial conviction. Applying a social psychological lens, we examined how the Alford plea influences innocent and guilty mock defendants' plea decision making. **Hypotheses:** We predicted that whereas guilty mock defendants would be more likely to accept a plea overall, the Alford variant would increase the rate at which innocent mock defendants accept pleas.

Method: We conducted two studies: In Study 1, 406 Prolific Academic participants read a vignette in which they were either innocent or guilty of involuntary manslaughter; in Study 2, we used an interactive simulation of legal procedures in which 367 innocent Testable Minds participants were accused of larceny. In both studies, participants were offered either a traditional plea requiring them to admit guilt or an Alford plea allowing them to maintain innocence. **Results:** As predicted, we found that guilty participants were more likely to accept a plea overall in Study 1 ($OR = 10.16$, 95% CI [6.38, 16.19]), but we did not observe an effect of Alford. In Study 2, innocent participants who rejected an initial plea were more likely to accept a second plea ($OR = 3.61$, 95% CI [1.28, 10.20]) if it was an Alford (and allowed them to maintain innocence). Additionally, many participants in both studies cited self-presentation-related reasons for their plea decisions. **Conclusion:** Our findings suggest that the Alford plea may increase the risk of false guilty pleas, a finding that has important implications for criminal defendants and the attorneys who advise them.

Keywords: Alford pleas, false guilty pleas, plea decision making, innocence problem, self-presentation

Public Significance Statement

Alford pleas allow defendants to maintain innocence while pleading guilty, yet they carry the same consequences as any other criminal conviction. We observed initial support for the hypothesis that being able to present as innocent (while pleading guilty) increases the number of factually innocent defendants who accept plea offers. This finding underscores the need for increased awareness and consideration of the complexities surrounding the Alford plea and the costs and benefits that it confers to criminal defendants, particularly those who are innocent.

The Psychological Allure of Alford: Does Wanting to Appear Innocent Put Innocents at Risk?

In West Memphis, Arkansas, in 1994, teenagers Damien Echols, Jason Baldwin, and Jessie Misskelley Jr. were arrested for the gruesome murder of three 8-year-old boys (Leveritt, 2002). Misskelley, who was just 16 years old (with an IQ of 72), was interrogated for roughly 12 hours without a guardian or lawyer present. He eventually gave a false confession, implicating Echols and Baldwin along with himself. Despite immediately recanting the confession, Misskelley's statement served as the basis for the arrest of the three teenagers. The West Memphis Three, as they came to be known, were all convicted of first-degree murder, with Damien Echols (at 18 years old) sentenced to death (Vota, 2011).

In 2007, new DNA tests were conducted and produced no matches with any of the three defendants (Innocence Project). Despite initially denying a motion for retrial, the Arkansas Supreme Court eventually ordered an evidentiary hearing to consider whether the new evidence could exonerate the West Memphis Three. With Echols awaiting a potential lethal injection and the prosecution actively stalling, the West Memphis Three ultimately accepted Alford pleas for time served—these pleas allowed them to maintain their innocence while conceding that the prosecution possessed sufficient evidence to persuade a jury of their guilt (Robertson, 2011). After spending more than 18 years in prison, the West Memphis Three were freed. However, because of their Alford pleas, Echols, Baldwin, and Misskelley remain convicted murderers and are ineligible to receive any compensation for their potentially wrongful convictions (Vota, 2011).

The Appeal of Alford

In *North Carolina v. Alford* (1970), the U.S. Supreme Court established that defendants could accept plea offers without admitting responsibility for the crime(s) (Blume & Helm, 2014). As with traditional guilty pleas, the defendant is still required to waive various rights, including the right to trial, certain avenues for appeal, and the opportunity to pursue civil action against the state. In other words, Alford pleas share the legal consequences of traditional pleas—except that defendants can maintain their innocence in the process (see Redlich & Bonventre, 2015).

Although little is known about Alford pleas, anecdotal data from defense attorneys suggest that they are rarely offered initially (Bibas, 2003). Instead, they tend to be introduced after negotiations have stalled, often because of the defendant's reticence to admit guilt (as in the cases of Kerry Max Cook [Wilford & Khairalla, 2019], Fred Steese [Rose, 2021], and others). This fact is further supported by the finding that defendants who accept Alford pleas tend to meet with their attorneys more frequently than other defendants (Redlich & Özdoğru, 2009), and their cases take longer to adjudicate than standard plea cases (Dezember & Redlich, 2024).

Today, typically absent fanfare or scrutiny, Alford pleas are commonly used. Zottoli et al. (2019) reported that although Alford pleas are explicitly permitted in only six states, they are used in 47 states and the District of Columbia. In fact, the Alford plea—which typically yields the same direct and collateral consequences as a traditional plea (a fact largely unknown to the public; see Gordon & Hellgren, 2020; Malone, 2020)—is now more prevalent nationwide than jury trials. Although recent statistics are unavailable, the 2004 U.S. Department of Justice Survey of Inmates in State Correctional Facilities estimated that 6.5% of state cases nationwide were resolved by an Alford plea (Bureau of Justice Statistics, 2004). In contrast, only approximately 2% to 3% of cases advanced to trial (Smith & MacQueen, 2017; U.S. Sentencing Commission, 2017; Wilford & Bornstein, 2023). These estimates suggest that, in 2004, approximately 76,000

individuals found their way into state prisons via an Alford plea (Redlich & Özdoğru, 2009). Although the current frequency of Alford pleas is unknown, given the continued increase in guilty pleas nationwide, this number has likely grown even further. Alford pleas have also been applied in several high-profile cases involving defendants who were granted retrials because of newfound doubt of their factual guilt (e.g., because of exculpatory DNA). Before their trials commenced, Alford pleas were offered as the only certain method to avoid further incarceration. This was true of the West Memphis Three as well as Joseph Buffey (see White, 2016), Kerry Max Cook (see Wilford & Khairalla, 2019), and Michael Petersen (see Walton, 2019). The complexity and outcomes of these Alford cases, combined with nationwide guilty plea trends, pose concerning implications for the innocence movement (Schneider, 2013).

One might argue that the Alford plea offers a valuable compromise to the defendant confronting the uncertainty of a trial—to gain the sentencing benefits of a guilty plea without the self-stigma and social stigma that accompany taking responsibility for the crime. In some cases, they might even retain or regain their freedom (e.g., via “time served” sentences). This could be particularly true for innocent defendants who get to minimize the sentencing damage of their wrongful accusation in exchange for pleading guilty, without having to accept responsibility for the crime. But does the integrity of plea convictions (and therefore the legal system) suffer when guilty pleas from defendants who refuse to admit guilt are allowed?

The “Innocence Problem”

At present, it is estimated that 97% of federal cases and 94% of state cases are resolved through guilty pleas, not trials (U.S. Sentencing Commission, 2017; Wilford & Bornstein, 2023). Although some legal scholars believe that innocent defendants would not plead guilty (Cassell, 2018), the National Registry of Exonerations (2024) has recorded nearly 900 cases involving

false guilty pleas (almost 25% of known exonerations). Other scholars have argued that pleading guilty can, in many ways, benefit even the innocent defendant (e.g., Bowers, 2008). Hence, many have warned of an “innocence problem,” wherein innocent defendants can be pressured to accept plea offers (Covey, 2009; Wilford & Khairalla, 2019). The pressure to plead is often exerted by prosecutors who possess immense discretion during plea negotiations (Alschuler, 1968; Bibas, 2004). They can, for instance, overcharge accused persons, thereby offering substantial “discounts” in exchange for accepting a plea (Cardenas, 2023)—or, to put it differently, they can threaten to overcharge and impose “trial penalties” for rejecting an offer and proceeding to trial (Dervan & Edkins, 2013; Rakoff, 2014; Redlich, Wilford, & Bushway, 2017).

Over the years, experiments that confront participants with seemingly consequential situations have observed significant rates of plea acceptance among innocent participants—in these high-stakes simulation studies (Wilford et al., 2019), false guilty plea rates of 37% (Henderson & Levett, 2018), 40% (Wilford & Wells, 2018), 43% (Russano et al., 2005), 50%+ (Wilford, Wells et al., 2021), and 56% (Edkins & Dervan, 2012) have been observed. This problem is not a mere laboratory phenomenon. Field research has found high rates of self-reported false guilty pleas, particularly among juveniles, 18% of whom self-reported pleading guilty despite being innocent (Malloy et al., 2014; also see Zottoli et al., 2016). Another study found that 37% of defendants with mental illness made similar reports (Redlich et al., 2010).

The Social Psychology of False Admissions

Basic principles of social psychology can provide some insight into these issues. Much has been written about how social influence can contribute to false admissions in both interrogation and plea-bargaining contexts (e.g., Kassin, 2005; Redlich, Wilford, & Bushway, 2017; Wilford et al., 2019), with some research indicating that false admissions are even more

vulnerable to social (external) factors than true admissions (Houston et al., 2014; Redlich et al., 2011). Here, we apply principles of social cognition, such as self-presentation and cognitive dissonance, to further explain why someone may give a false admission (Kassin, 2017; Redlich, Bibas, et al., 2017).

First, although the Alford plea—just like the traditional plea—yields punishment in the form of direct and collateral consequences, the opportunity to assert one's factual innocence officially and publicly may provide enough self-presentational benefit to make that decision more palatable. Following Goffman (1959), research has shown that people engage in strategic self-presentation to present themselves to others in a positive light (Jones & Pittman, 1982) and that this process boosts their self-esteem (Jones et al., 1981). In this regard, defendants who proclaim their innocence while accepting a plea offer gain psychological benefits to the self that can overcome the absence of any legal benefit (relative to a traditional plea).

Alternatively, self-verification theory proposes that people are motivated for others to perceive them in a manner that is consistent with their self-view or self-perception (e.g., Swann, 2012; Swann et al., 1987). Self-verification may help explain why innocent defendants who would not accept a traditional plea potentially find an Alford plea appealing; by maintaining their innocence, they are self-presenting in a manner consistent with their self-concept, while at the same time reaping the benefits of a plea discount and avoiding the risk of a trial.

Research on false confessions indicates that guilty individuals often use strategic self-presentation to avoid police suspicion (Kassin & Norwick, 2004). Kassin and Norwick (2004) found that individuals fearing suspicion primarily cited self-presentational reasons for waiving Miranda rights. Additional studies have shown that guilty suspects use these tactics to appear innocent during interrogations (Clemens & Grolig, 2019; Hines et al., 2010). Similar tactics may

be employed by Alford defendants to project innocence and safeguard their reputation, despite pleading guilty (Ronis, 2009; Schneider, 2013).

Cognitive dissonance theory offers yet another perspective on Alford. Stemming from Festinger's (1957) original theory, research has shown that one's actions and words arouse dissonance if they threaten self-esteem in important ways (for overviews, see Aronson, 1999; Cooper, 2019). This state of tension can be reduced by providing dissonance-threatened individuals with an opportunity to revalidate the integrity of their self-concept through various means of self-affirmation (Steele et al., 1993).

In summary, research on strategic self-presentation, self-verification, and self-affirmation theories may help to explain why innocent defendants who would not accept a traditional plea may find an Alford plea appealing. The only benefit of an Alford plea is not admitting guilt; its legal consequences are essentially the same as traditional pleas. But, by maintaining their innocence, defendants get to self-present in a manner that is positive, consistent with their self-concept, and self-affirming, while at the same time reaping the benefits of a plea deal that averts the risks of a trial.

The Present Research

Drawing on classical social psychology research, we explored how the ability to maintain innocence via an Alford plea influences plea decision making. In two studies, we sought to answer the following questions: (a) Will innocent defendants who would otherwise reject a traditional plea be more likely to accept an Alford plea that enables a public assertion of innocence? (b) Among those who accept Alford pleas, would the ability to maintain innocence be cited as a contributing factor for their plea (revealing a potential role of self-presentation motivations)?

In Study 1, we presented participants with a vignette in which they were accused of a crime (involuntary vehicular manslaughter) for which they were either guilty or innocent. They were then offered a traditional guilty plea that would result in 6 months in jail (vs. up to 5 years if convicted at trial) or an Alford plea that would yield the same 6-month sentence plus the ability to maintain innocence. All participants then indicated whether they would plead guilty or not guilty and answered other case-related questions.

In Study 2, we used an interactive legal simulation in which innocent participants were accused of stealing a pair of designer sunglasses and offered an initial plea deal. If they refused the initial deal, they were then offered a second traditional plea deal or an Alford plea, after which they were asked about their plea decision and reasoning.

We predicted that whereas guilty participants would be more likely to accept pleas overall compared with innocent participants (Study 1), the Alford plea would increase the number of innocent people accepting pleas (Studies 1 and 2). Although previous research has reported null effects of Alford pleas (Fessinger & Kovera, 2023), none has employed an interactive computer simulation or a multiple offer format such as we used in Study 2. As discussed, this format better represents how Alford pleas are likely introduced to defendants in the real world (Bibas, 2003; Dezember & Redlich, 2024). We further predicted that those participants who accepted Alford pleas would be more likely to cite reasons aligning with theories of dissonance reduction and self-presentation.

Study 1

Method

Participants

An a priori power analysis using G*Power indicated that a total of 351 participants is adequate to detect a medium to small effect size ($f = 0.15$, $\alpha = .80$, $p = .05$; Faul et al., 2009). Participants were oversampled by 10% to account for participant attrition due to failed manipulation or attention checks.

In total, 408 participants were recruited. Only two participants were removed for failing more than two attention checks, resulting in a final sample size of 406. Participants were all adult U.S. citizens, recruited from Prolific Academic, and paid \$1.78 for their time. They ranged in age from 18 to 77 years, with a mean age of 31.2 years ($SD = 11.2$). Our sample identified primarily as women (53.4%) and men (43.6%), with just 2.2% identifying as nonbinary, and 0.7% not reporting their gender. Participants reported their racial/ethnic background as White/European American (62.6%), Asian/Asian American/Pacific Islander (14.0%), Latinx/Hispanic/heritage from Latin American country (9.9%), African American/Black (7.4%), biracial/multiracial (5.4%), Middle Eastern/Arab/Turkish/Iranian (0.2%), or other (0.5%). When asked about education, most participants reported possessing some level of higher education: 28.6% reported having “some college” experience, 8.4% had an associate degree, 28.8% had a college degree, 3.0% had some graduate school experience, 13.1% had a master’s degree, and 3.4% had a doctoral degree. We did not apply protections against experiment-wise error because most of our dependent variables were independent of each other (e.g., plea decision, reasoning behind plea decision). Further, several of our measures were exploratory and were not directly tied to our primary hypotheses (e.g., confidence in plea decision). Although the assumption of normality for the ANOVAs reported below was violated as indicated by significant Shapiro-Wilk tests, we chose to proceed with the ANOVA analyses due to it being considered sufficiently robust to handle violations of this kind (Knief & Forstmeier, 2021).

Design

Each participant was randomly assigned to one of four conditions produced by a 2 (guilt status: guilty vs. innocent) $\times$ 2 (plea type: traditional vs. Alford) between-subjects design.

Procedure

Participants were directed to an online Qualtrics survey. After completing informed consent, participants were asked to imagine driving home from a friend's house and hitting a pedestrian with their car (see Appendix for full vignette). The vignette was loosely based on that used by Tor et al. (2010) and Gordon and Hellgren (2020) in which other independent variables that might influence plea decision making were explored (specifically, these researchers examined impacts of the fairness of the plea offer and the knowledge of collateral consequences on plea outcomes, respectively); a similar vignette was also employed by Fessinger and Kovera (2023). To manipulate guilt status, we asked participants to imagine that they were either guilty (they were speeding and, thus, criminally responsible for hitting the pedestrian) or innocent (they did not speed, and thus, it was an accident) of the crime. Regardless of guilt status, they were told that they had not been drinking any alcohol and that they had made a point to drive home while it was still light out. Participants were accused of involuntary manslaughter and then informed by their public defender, "The prosecutor has offered you a deal: She will reduce your total sentence if you plead guilty to the offense of involuntary manslaughter." At this point, participants were told that they hesitated and refused the initial deal. They were then offered an alternative deal, which constituted the plea type manipulation: either a traditional plea (6 months in jail instead of a possible 5 years in prison if convicted at trial) or an Alford plea (the same deal with the added opportunity to proclaim innocence). All participants were told that if they rejected the plea, they would be charged with involuntary manslaughter and tried within the next several

weeks. If they were found guilty, the judge would determine what larger punishment was appropriate (ranging from 3–5 years). If they were acquitted, they would walk free. After reading the scenario, participants answered a series of questions aimed at examining their decision-making process.

Study Materials

Attention and Manipulation Checks. Participants received several questions throughout the survey with the purpose of examining whether they paid attention and understood the study materials. Participants completed an instructional manipulation check (Oppenheimer et al., 2009). This type of attention check is used regularly in online research (Aube et al., 2024; Peer et al., 2014). In addition, participants were asked whether they had speeded to ensure that they were aware of their own guilt status. As a combined attention and manipulation check, they were also asked to provide the final sentence they were offered as part of the plea (i.e., 6 months in a county prison). Participants who failed two or more of these three checks were removed from subsequent analyses (these criteria were determined prior to data collection for removal of data after data collection). No other data were removed, being that the nature of the dependent variables (e.g., plea decision) would not produce outliers justifying removal or requiring data transformations. Responses to all dependent variables were required; thus, there were no missing data for these measures.

Plea Decision. The primary dependent variable was whether participants chose to accept or reject the prosecutor's plea offer. Participants were then asked to rate their confidence in this decision on a 10-point Likert-type scale (1 = *not at all* to 10 = *very*).

Reasoning Behind Plea Decision. Across conditions, participants were prompted to explain the reasoning for their final plea decision. This was an open-ended question, and responses were later coded to examine whether reasoning differed by condition.

Case Evaluation. Participants then evaluated several aspects of the case. Specifically, they were asked to rate the seriousness of the crime of which they were accused (1 = *not at all* to 10 = *very*), how strong the evidence of them speeding was (1 = *not at all* to 10 = *very*), and how likely they were to be convicted (scale ranging from 1–100).

Postplea State of Mind. To explore how the plea decision affected their state of mind, we asked participants to rate how difficult the decision was to make (1 = *very difficult* to 7 = *not at all difficult*), how satisfied they were with their decision (1 = *not at all satisfied* to 10 = *very satisfied*), and how much pressure they felt when they were offered a deal (1 = *none* to 10 = *a great deal*).

Consequences of Decision. Next, to explore how the potential consequences of the plea influenced their decision making, we asked participants to rate the extent to which their plea decision was influenced by the consequences of rejecting the deal (going to trial and facing significant prison time; 1 = *very much* to 10 = *not at all*) and the consequences of accepting the deal (less severe sentence: only 6 months in prison; 1 = *very much* to 10 = *not at all*). For the Alford plea conditions, participants were also asked how influenced they were by the opportunity to maintain their innocence (1 = *very much* to 10 = *not at all*).

Data and materials for this study are available on the OSF (https://osf.io/4vmdn/?view_only=a9c86ba5111249838f67ac1747efb4f9).

Results

For ease of interpretation, we report a narrative summary of the primary results, and other peripheral findings are reported in tables in the online supplemental materials.

Plea Decision

Overall, 51.2% ($n = 208$) of participants accepted the plea, and 48.8% ($n = 198$) rejected. A binomial logistic regression was conducted on the dichotomous plea decision. For guilt status, *guilty* was the reference category, and for plea type, *traditional* was the reference category. The model was significant, $\chi^2(3) = 122, p < .001$, and explained 34.5% of the variance in plea decisions (Nagelkerke's R^2).

As predicted, guilty participants were significantly and substantially more likely to accept a plea offer (77.8%, $n = 158$) compared with innocent participants (24.6%, $n = 50$, $OR = 10.16, p < .001$, 95% CI [6.38, 16.19]). The main effect of plea type was not significant. Participants who were offered a traditional plea accepted it at a similar rate (50%, $n = 102$) to those who were offered an Alford plea (52.3%, $n = 106$). Innocent participants were slightly more likely to accept the plea offer in the Alford condition (26.5%, $n = 27$) than in the traditional condition (22.8%, $n = 23$), but this difference was not significant ($p = .69$). There was also no significant interaction effect of guilt status and plea type (see Table 1 for plea acceptance rates by condition).

[TABLE 1 ABOUT HERE]

Participants also rated how confident they were in their decision. Overall, these ratings hovered just above the midpoint ($M = 6.66, SD = 2.48$). We found a significant main effect of plea type, $F(1, 402) = 4.389, p = .037, \eta_p^2 = .011$, 95% CI [0.000, 0.034], for which participants presented with a traditional plea offer were more confident ($M = 6.91, SD = 2.43$) compared with those offered an Alford plea ($M = 6.40, SD = 2.50$). The main effect of guilt status was not significant, nor was the interaction of guilt status and plea type (see Table 2).

[TABLE 2 ABOUT HERE]

Reasoning Behind Plea Decision

In an open-ended question, participants were asked to state their reasons for accepting or rejecting the plea deal. Two coders, both blind to condition, separately reviewed all responses and created 14 categories, including the two predetermined Alford-related categories (i.e., *opportunity to maintain innocence* and *opportunity to appear innocent to others*). All responses were then coded (several responses fit into more than one category, whereas some did not fit into any categories). The coders' ratings were averaged to provide percentages. Participants' top five reasons for their plea decisions are presented in Table 3 (a full table with all 14 categories can be found in Table 4). Cohen's kappa for each category was calculated to assess the interrater reliability. All other coefficients ranged from .355 ("Consequences were not too bad") to .852 ("To avoid harsher consequences"), with an average kappa of .625, which represents an acceptable degree of agreement between raters. The most frequent reason for participants who accepted a plea was to avoid harsher consequences with the uncertainty of trial (68%, $n = 122$). The most common reason cited by those who rejected a plea was their actual innocence (i.e., that they were not guilty; 68.3%, $n = 142$). Once again, we sought to explore how often the ability to maintain one's innocence was cited, particularly by participants who accepted an Alford plea. Overall, 6.7% of participants ($n = 14$) who accepted a plea reported that maintaining innocence was a reason for their decision. Notably, all participants who reported this as their reason were in the innocent-Alford condition. In other words, of the innocent Alford pleaders who accepted the plea, 51.9% ($n = 14$) cited being able to proclaim their innocence as the reason for their plea decision. The opportunity to *appear* innocent to others, on the other hand, was cited by only one participant as their reason for accepting an Alford plea. As one would expect, no participants

who accepted a traditional plea, regardless of their guilt status, cited the opportunity to maintain innocence, or appear innocent, as a reason for their plea decision.

[TABLES 3 AND 4 ABOUT HERE]

Case Evaluation

To examine participants' evaluations of the case against them, we asked them to rate the severity of the crime, the strength of the evidence against them, and how likely they were to be convicted at trial.

Overall, participants rated the severity of the crime as high ($M = 8.59$ out of 10, $SD = 1.84$), and there were no significant differences in perceptions of crime severity across conditions. Guilty participants rated the evidence against them as stronger ($M = 6.46$, $SD = 3.54$ vs. $M = 2.99$, $SD = 2.16$, $p < .001$, $\eta_p^2 = .353$, 95% CI [0.293, 0.407]) and their likelihood of conviction as higher ($M = 70.3\%$, $SD = 23.14\%$ vs. $M = 44.99\%$, $SD = 27.11\%$, $p < .001$, $\eta_p^2 = .209$, 95% CI [0.153, 0.264]) compared with innocent participants. No significant effects based on plea type were observed (see Table A in the online supplemental materials).

Postplea State of Mind

Participants reported finding plea decisions moderately difficult to make ($M = 6.82$, $SD = 2.96$). Innocent participants found the decision significantly more difficult ($M = 7.11$, $SD = 2.88$) relative to guilty participants ($M = 6.53$, $SD = 3.03$, $p = .047$, $\eta_p^2 = .010$, 95% CI [0.001, 0.032]). There were no significant effects of plea type and no interaction of guilt status and plea type on this measure (see Table B in the online supplemental materials). Participants also rated their level of decision satisfaction and how pressured they felt to accept or reject the plea. Across conditions, participants were moderately satisfied ($M = 5.75$, $SD = 2.69$), with no significant differences across conditions. Participants also reported feeling highly pressured to make a plea

decision ($M = 7.74$, $SD = 2.55$), but once again, there were no significant differences based on plea type or guilt status and no interaction.

Consequences of Plea Decision

Participants reported being highly influenced by the consequences of rejecting the plea ($M = 7.61$, $SD = 2.56$) and by the consequences of accepting it ($M = 7.40$, $SD = 2.48$). Guilty participants reported being more influenced by the consequences of both rejecting a plea, $F(1, 402) = 9.06$, $p = .006$, $\eta_p^2 = .022$, 95% CI [0.005, 0.051], and accepting a plea, $F(1, 402) = 17.561$, $p < .001$, $\eta_p^2 = .042$, 95% CI [0.016, 0.078], compared with innocent defendants. There were no significant main effects of plea type or any interactions (see Table C in the online supplemental materials). Overall, participants in the Alford condition reported that their plea decisions were moderately influenced by the opportunity to maintain innocence ($M = 5.93$, $SD = 3.10$). Although innocent participants said they were slightly more influenced by the ability to maintain innocence ($M = 6.10$, $SD = 3.05$) compared with guilty participants ($M = 5.75$, $SD = 3.14$), this difference was not statistically significant and the effect size was small, $t(200) = -0.798$, $p = .426$, $d = -0.112$, 95% CI [-0.39, 0.16].

Summary

Overall, guilty participants were 11 times more likely to plead guilty compared with innocent participants. Still, approximately one quarter of innocent people still accepted a plea. Contrary to our predictions, no significant differences emerged as a function of whether participants were offered a traditional plea versus Alford plea (for innocent or guilty participants). However, there were some study limitations that could have contributed to these null findings. First, we did not confirm that participants completely understood what the Alford plea entailed, which makes it unclear whether participants fully grasped the unique nature of the

plea (importantly, this could also be true in real cases, given deficits in plea knowledge even among those who have recently pleaded guilty; Redlich & Summers, 2012). Previous research has revealed that only approximately 20% to 30% of laypeople have even heard of an Alford plea (Hellgren, 2023), so it is possible that participants in the current study were confused about the precise consequences of the plea. Further, we used a vignette design that asked participants to imagine being accused of a crime. Although this type of design certainly has value, and we found innocent plea rates similar to those of more immersive lab studies (Redlich, Wilford, & Bushway, 2017), it still offers limited experimental realism (Wilford et al., 2019). Participants were also unable to accept or reject the initial plea; they were simply told that they rejected it before being offered a second plea. To address these shortcomings, we conducted a second study.

Study 2

In a second study, we made two primary changes: (a) Instead of a vignette design, we used an interactive simulation in an attempt to make the legal scenario more engaging and realistic for participants (see Wilford, Sutherland et al., 2021), and (b) we included only innocent mock defendants (given that they appeared to drive the nonsignificant increase in acceptance of Alford pleas vs. traditional pleas observed in Study 1). This simulation has been deployed in several published studies examining plea outcomes (DiFava et al., 2023; Henderson et al., 2023; Wilford, Sutherland et al., 2021; Wilford, Zimmerman et al., 2021; Yan et al., 2022). Results have consistently aligned with those observed using other research methods (for instance, expected effects of guilt status, conviction probability, and sentence discount have been observed using the simulation; Wilford, Sutherland., 2021). Further, Wilford et al. (2024) found that participants expressed more confidence in the realism of their decisions after the simulation than

after a vignette; in other words, participants generally believed they were more likely to make “the same plea decision in real life” (on a scale ranging from 0%–100%) following the simulation versus a vignette. They also rated the simulation as significantly more immersive and less boring than a vignette. Further, research incorporating virtual environments (with similar features) has consistently documented their value in mimicking real-world scenarios and processes, with reviews coining the phrase, “immersive virtual environment technology” (e.g., Bombari et al., 2015). That said, the simulation is still a simulation and shares the foundational limitations of simulation research (e.g., no real-world stakes; Monahan & Loftus, 1981). Regardless, at the least, it offers a different method by which to examine the effect of Alford pleas on innocent defendants.

Among other, more minor changes, we also provided participants the option of rejecting an initial (traditional) plea deal first, to simulate a more realistic scenario (in which the Alford option is introduced only after a traditional plea has been rejected). Participants were also provided a more detailed explanation of an Alford plea and were required to type out a corresponding plea statement (and could subsequently decide to reject the offer if they did not agree to the statement). As in Study 1, we predicted that the Alford plea would increase the plea acceptance rate compared with a traditional plea offer (particularly in this sample of only innocent participants). In other words, among participants who rejected the initial plea offer, those who were then presented with an Alford plea deal (vs. a second traditional plea offer) would be more likely to accept.

Method

Participants

We relied on the same a priori power analysis through G*Power conducted for Study 1. Because we were primarily examining second-round plea offers, we maintained the higher (Study 1) sample, despite the simpler design, presuming that a significant number of participants would not be administered the study manipulation as they would accept the first-round plea offer. Thus, we planned on a minimum of 351 participants.

We recruited 415 participants to account for failed manipulation and attention checks. All participants passed the attention checks, but 48 participants were removed for not passing three out of four manipulation checks. The final sample consisted of 367 community participants recruited through Testable Minds—a new crowdsourcing platform from which to recruit study participants (Aube et al., 2024). Participants were paid \$5.00 for their time, and they ranged in age from 18 to 75 years, with a mean age of 38.7 years ($SD = 12.6$). The sample identified primarily as women (53.7%) and men (44.1%), with 2.2% identifying as nonbinary. Participants reported their racial/ethnic background as White/Caucasian (70.5%), African American/Black (14.5%), Asian (6.0%), Hispanic/Latinx (5.2%), Native Hawaiian/Pacific Islander (1.1%), mixed/biracial (1.1%), and Middle Eastern/North African (0.8%). Most participants reported possessing some level of higher education: 24.3% reported having “some college” experience, 12.0% had an associate degree, 29.4% had a college degree, 2.7% had some graduate school experience, 15.0% had a master’s or professional degree, and 3.8% had a doctoral degree. Overall, reported demographics were similar to the Study 1 sample.

Most participants reported having no justice system experience (82.7%), although of the 15.4% who did, 17.0% reported having accepted a plea. A larger portion of participants had

family or close friends who had justice involvement (48.8%). Only 2.6% ($n = 9$) of participants reported previous exposure to the simulation.

We did not apply protections against experiment-wise error for the same reasons as Study 1. The assumption of normality for the t tests was violated, as indicated by significant Shapiro-Wilk tests. However, we retained the t tests in most cases, as they are generally robust to violations of normality, particularly with sufficiently large sample sizes and near-normal distributions (Knief & Forstmeier, 2021). In two cases in which additional assumptions were violated, we opted for alternative tests: the Welch's test for cases with unequal variances, and the Wilcoxon rank-sum test for instances with small, uneven sample sizes. This approach ensured the reliability of our results under these specific conditions.

Design

This study used a between-subjects design with online community participants. All participants were offered an initial traditional plea deal. If the participant rejected this offer, they were then randomly assigned to receive either a second traditional plea offer or an Alford plea.

Procedure

Participants were recruited from Testable Minds' highest tier, Verified Minds, which confirms the identity of every participant before they complete any study to improve data quality. Participants had to live in the United States, be 18 years of age or older, and have a site approval rating above 95%. All participants provided consent before taking part in the study. This project was approved by the Institutional Review Board at the University of Massachusetts Lowell.

Participants completed the study online through Testable. After answering demographic questions, they viewed the following simulation:

Participants viewed a simulated shoplifting scenario, in which they began by customizing their own avatar to represent them in the simulation (i.e., their participant avatar; see Figure 1). The simulation begins with the participant avatar walking across a mall and into a sunglasses store and asking the store clerk for a pair of sunglasses behind the counter. The clerk hands the participant avatar the sunglasses, after which they walk away from the register toward a mirror to try them on. The participant avatar then receives text messages from friends telling them that they are going to be late for a movie. The avatar lifts the sunglasses to the top of their head to read the messages and looks backward, noticing that the clerk is now engaged in conversation with another customer.

[FIGURE 1 ABOUT HERE]

Next, a court summons appears. The participant avatar, who now appears in a generic bedroom, has a flashback to the day of the incident, recalling that they put the sunglasses down immediately before leaving the store and walked out without them (see Figure 2). They surmise that someone else must have swiped the sunglasses after they set them down. Thus, all participants in this study were innocent. The simulation then shows a courtroom wherein a prosecutor explains the charge to a judge. The prosecutor claims that the salesclerk identified the participant avatar and that security footage from the store shows them taking the sunglasses. The judge then tells the participant avatar that they are being charged with stealing the pair of designer sunglasses. The participant avatar is then shown back in the generic bedroom (after the hearing ends), once again thinking about the day in question. They saw the same flashback, again confirming that they were innocent (the flashback was shown twice because it was brief, and we wanted to ensure that participants' guilt status was clear, see Figure 3). They then move to a meeting with their defense attorney, who explains that the evidence does not definitively prove

that they stole the sunglasses (i.e., the clerk could be mistaken, and the camera angle did not show them exit the store with the sunglasses). These statements were added to prevent participants from believing they were guilty because of perceived strength of the evidence. He then describes a traditional guilty plea and outlines the terms of the plea deal being offered by the prosecutor. The plea deal was for 1 month in jail and 12 months of probation, rather than the possibility of 12 months in jail and 12 months of probation if convicted at trial (see Figure 4).

[FIGURES 2, 3, AND 4 ABOUT HERE]

Participants who accepted the plea offer returned to the courthouse for a brief plea colloquy. The judge informed participants that they are admitting guilt for the crime, they will face the consequences of conviction, and they are waiving various rights, such as the right to a trial by jury and the right to confront their accusers. Participants were then routed back to the survey where, if they agreed with the judge's statements, they wrote a statement that said, "I, [their name], plead guilty to larceny and I admit responsibility for stealing the sunglasses." Participants were permitted to retract their plea if they did not want to write out the statement.

Participants who rejected the plea offer were given a second plea offer. Each participant was randomly assigned to be offered either a second traditional plea or an Alford plea—this served as the only study manipulation (of plea type). Participants were told that their defense attorney would meet with the prosecutor. When their defense attorney returned, they informed the participant that the prosecutor offered a second plea deal: 1 month in jail and 6 months of probation rather than 12 months in jail and 12 months of probation. In the Alford plea condition, the participants' attorney also explained that the Alford plea would allow them to accept the reduced sentence without having to admit guilt and take responsibility for the crime but that it is still a conviction (see Figure 5). They were also told that if they rejected this offer, there would

be no others and that the case would then proceed to trial. Those who accepted the traditional plea were shown the same plea colloquy and had to write the same statement as those who accepted the first traditional plea offer. Participants who accepted the Alford plea returned to the courthouse where they were also shown a similar colloquy. But in this condition, participants were told that, unlike a standard guilty plea, an Alford plea would allow them to accept a reduced sentence without having to admit guilt and take responsibility for the crime but that it would still result in a conviction. Participants were then routed back to the survey where, if they agreed with the judge's statements (see Figure 6), they were prompted to write a statement that said, "I, [their name], accept an Alford plea for the charge of larceny, but I am not admitting guilt." In both conditions (as with the first plea decision), participants were given the option to refuse to write the required statement and choose to reject the plea instead. Last, they answered postplea questions assessing their understanding of the plea deal and their reasoning for either accepting or rejecting (similar to those in Study 1).

[FIGURES 5 AND 6 ABOUT HERE]

Study Materials

Attention and Manipulation Checks. Participants received several questions throughout the survey to examine whether they paid attention and understood the study materials. Participants had to correctly answer four instructional attention check questions, such as, "In order to show us that you are paying attention, please select '6' from the options below." Participants also had to correctly answer three out of four manipulation check questions that required them to recall the terms of the plea deal, the sentence they would receive if convicted at trial (e.g., 12 months in jail and 12 months of probation), their guilt status (e.g., innocent), and whether they had to admit guilt or were able to maintain their innocence as part of the plea offer

(response varied depending on the type of plea). As with Study 1, these criteria were determined prior to data collection for removal of data after data collection. No other data were removed. Responses to all dependent measures were required; thus, there were no missing data for these measures.

Plea Decision and Reasoning. As in Study 1, the primary dependent measure was participants' final dichotomous plea decision (accept or reject). Next, we included an open-ended question asking participants to explain why they accepted or rejected the plea deal. These responses were then coded using the same 14 categories from Study 1 (with some modifications).

Case Evaluation. Participants also completed case evaluation questions similar to those in Study 1 measuring the seriousness of the wrongdoing (the larceny; 1 = *not at all* to 10 = *very*), the strength of the evidence (1 = *not at all* to 10 = *very*), and their perceived probability of conviction (scale ranging from 1–100).

Postplea State of Mind. Participants were also asked how satisfied they were with their decision and how much pressure they felt to accept or reject the plea deal. In addition, participants who rejected the second plea deal were asked additional yes/no questions assessing whether they would have accepted the plea deal if they had been offered less jail time or offered only probation. Finally, participants were asked if they had ever heard of an Alford plea before this study and, if so, where they had learned this information.

Data and materials for this study are available on the OSF (https://osf.io/4vmdn/?view_only=a9c86ba5111249838f67ac1747efb4f9).

Results

For ease of interpretation, we report a narrative summary of the primary results, and other peripheral findings are reported in tables in the online supplemental materials. Just 21 participants (5.7%) accepted the initial plea offer. This group is not included in our primary analyses because we were concerned with responses to plea type (i.e., Alford or traditional), which were not introduced until after the initial plea was rejected. Instead, all analyses that follow will focus on the participants who rejected the initial offer ($n = 346$) and thereby had the opportunity to receive alternative plea types.

Plea Decision

Twenty participants (5.8%) accepted a second-round plea offer. We conducted a binomial logistic regression that revealed that plea type significantly predicted the plea decision, $\chi^2(1) = 6.84, p = .009$, and explained 5.5% of the variance (Nagelkerke's R^2). Participants in the Alford condition were significantly more likely to accept the second plea deal (9.2%, $n = 15$) compared with those in the traditional condition (2.7%, $n = 5$, $OR = 3.61$, 95% CI [1.28, 10.20]).

Reasoning Behind Plea Decision

As in Study 1, participants were asked to state their reasons for their decision. Two coders, both blind to condition, used the coding scheme created in Study 1 to sort responses into the categories described earlier (several responses fit into more than one category). The scheme originally consisted of 14 categories, but two were removed because no responses fit, and one new category was added. The coders' judgments were averaged to provide percentages. The top five reasons that participants accepted or rejected the plea are presented in Table 5 (see Table 4 with all 15 categories). Cohen's kappa for each category was calculated to assess the interrater reliability. The coefficients ranged from .497 ("Consequences were not too bad") to 1.0 (this was true for four categories: "The ability to maintain innocence," "I was guilty," "To get it over

with,” and “A lawyer will help me”), with an average kappa of .813, which represents a very high degree of agreement between raters.

[TABLE 5 ABOUT HERE]

The most frequent reason reported by participants who accepted a second plea was, as in Study 1, to avoid more severe consequences (60.0%, $n = 12$). The most common reason cited by those who rejected a plea was their actual innocence (e.g., that they were not at fault; 31.3%, $n = 102$). Once again, we sought to explore how often the ability to maintain innocence was mentioned, particularly by participants who accepted an Alford plea. Overall, 25.0% ($n = 5$) of those who accepted a plea reported that maintaining innocence was a reason for their decision, all of them in the Alford plea condition. Those participants who rejected both pleas were asked whether less jail time, or probation rather than jail time, would have made them accept the plea. Most participants reported that it would not (91.4% and 75.9% for less jail time and probation, respectively). No significant differences as a result of plea type were found. For ease of interpretation, the main results for the remaining variables are reported narratively with full statistics reported in tables in the online supplemental materials.

Case Evaluation

Overall, participants viewed the accused crime as moderately serious ($M = 5.01$ out of 10, $SD = 2.82$), the evidence against them as weak ($M = 3.72$, $SD = 2.07$), and their perceived probability of trial conviction as low ($M = 35.5\%$, $SD = 23.3\%$). No differences based on plea type were found (see Table D in the online supplemental materials).

To compare how participants who accepted a second plea and those who rejected one evaluated the case, we conducted a series of Wilcoxon rank-sum tests. This approach was chosen because of violations of normality and the uneven sample sizes between the groups.

As one might expect, compared with those who rejected a second plea, the participants who chose to accept a plea (regardless of type) viewed the evidence against them as significantly stronger ($Mdn = 6.50, n = 20$ vs. $Mdn = 3.00, n = 326, W = 5241.5, p < .001, g = 1.30, 95\% CI [0.84, 1.76]$) and their probability of conviction as higher ($Mdn = 75.00, n = 20$ vs. $Mdn = 30.00, n = 326, W = 5397, p < .001, g = 1.45, 95\% CI [0.98, 1.91]$). They also perceived the crime they were accused of as more serious, but this difference did not reach significance ($Mdn = 4.97, n = 20$ vs. $Mdn = 5.75, n = 326, W = 3736.5, p = .269, g = 0.28, 95\% CI [-0.18, 0.73]$).

Postplea State of Mind

Participants rated their satisfaction with the plea as just above the midpoint ($M = 6.56, SD = 3.44$). Similarly, they felt moderately pressured to accept the plea ($M = 6.04, SD = 3.09$). Once again, no differences based on plea type were observed (see Table E in the online supplemental materials).

We asked whether participants were familiar with the Alford plea, and as anticipated, only 24.6% ($n = 85$) had heard of it prior to the study. Most participants reported learning about Alford pleas through the news (71.8%, $n = 61$), TV shows/documentaries (10.0%, $n = 9$), school (5.9%, $n = 5$), or someone they know (4.7%, $n = 4$).

Summary

Although most innocent participants rejected both plea offers, the Alford plea increased the number of people choosing to accept. As in Study 1, many participants cited the risk and uncertainty of trial as a reason to accept a plea offer (regardless of plea type) and their factual innocence as a reason to reject. Importantly, we found that only approximately one quarter of the primary sample had ever heard about Alford pleas prior to the study, underscoring the fact that this controversial plea is unknown to most laypeople.

General Discussion

The Alford plea is a controversial construction that, although unknown to most laypeople, inspires strong feelings from legal scholars (Alschuler, 2003; Conklin, 2020). Some scholars herald Alford as a beneficial alternative for innocent individuals, giving them the advantages of negotiated pleas and the ability to proclaim their innocence (thereby preserving their reputation and positive self-regard; Ronis, 2009). Others assert that the Alford plea is coercive and unconstitutional and often bears unknown collateral consequences (Bibas, 2003). The current set of studies sought to inform this debate by illuminating whether Alford pleas increase false guilty pleas (and consequently reduce the diagnosticity or reliability of plea convictions by contributing to wrongful convictions).

False Guilty Pleas

We predicted that whereas guilty participants would be more likely to accept pleas overall (Study 1), the Alford plea would make innocent participants more likely to plead (Studies 1 and 2). Our predictions were partially supported. First, consistent with previous research, guilty participants were significantly more likely to accept a plea compared with innocent participants. However, we still observed a 24.6% plea acceptance rate among innocent participants in Study 1. These numbers are consistent with false guilty plea rates in previous experimental studies (e.g., Redlich, Wilford, & Bushway, 2017; Tor et al., 2010). There are scholars who have argued that although the innocence problem in plea bargaining may be real, its magnitude is much too small to warrant any significant changes to the system (Gazal-Ayal & Tor, 2011). However, the current findings add to the literature on false guilty pleas, indicating that the problem is both real and significant. Although it is difficult to discern the true number of innocent defendants pleading guilty in the real world, the fact that so much research has found that 20% to 25% of innocent

individuals are willing to plead guilty in hypothetical vignettes should raise concern. Although the false guilty plea rate dropped in Study 2, it was still 11.2% ($n = 41$; accounting for both first- and second-round acceptance). These results, along with the growing number of documented wrongful convictions involving false guilty pleas (nearly 900; National Registry of Exonerations, 2024), suggest that the number of real-world false guilty pleas is significant.

Alford Pleas

Next, although we did not find that the Alford plea increased the plea acceptance rate among participants in Study 1, we did observe a significant effect in Study 2. Study 2 employed an interactive simulation methodology and required participants to type out a corresponding plea—both changes aimed to increase the psychological realism of the study and its manipulations. Consequently, we found that those who rejected an initial (traditional) plea were 3 times more likely to accept a second plea if it was an Alford plea compared with a traditional plea. Importantly, the only difference between the two pleas was the ability to maintain innocence; the direct consequences were the same. Thus, the threefold increase in the likelihood of accepting an Alford plea suggests a unique psychological benefit that resonates with innocent individuals who find it important to be able to assert their innocence in the plea-bargaining context. Whereas the motivations to accept an Alford plea are likely multifaceted and extend beyond self-presentation, our findings indicate that self-presentation can be a helpful framework for understanding the appeal of Alford pleas.

Indeed, when we examined participants' reasoning for accepting and rejecting pleas, we found indicators of self-presentation motivations for both guilty and innocent participants. Across Studies 1 and 2, two of the most frequently mentioned rationales referred to participants' guilt status. More than one third of innocent participants stated their innocence as the rationale

behind their decision in Study 1, whereas more than one third of guilty participants suggested that their guilt was the reason for their plea decision. These findings are in line with theories on self-verification (Swann et al., 1987); participants seem to be concerned with presenting themselves in ways that are consistent with their self-view, as indicated by their responses.

Some participants' elaborations further lent support to the idea of self-verification, particularly for innocent participants. For example, one participant in Study 1 stated, "I rejected the offered deal because I knew I was innocent. If I just accepted the deal I would be seen as a liar and cheater, which I am not." This participant clearly stated that they do not view themselves as a liar and that accepting a plea would challenge that self-view. As one participant in Study 2 put it, "I wasn't guilty, and I don't lie." Another participant in Study 1 wrote,

I myself know that I was not speeding and that I am innocent. My innocence would come through in my statement. I will stick to my guns and if I have to go to prison for longer at least I will know that I am innocent.

These responses demonstrate how important maintaining innocence was for participants.

Similarly, guilty participants were more likely to cite the importance of honesty and owning up to one's actions as reasons for accepting a plea. One participant asserted, "Also, there is the moral issue of honestly accepting responsibility that my careless action killed someone and the consequences." Another said, "I feel that pleading guilty would be a lie, and I do not want to lie."

As predicted, innocent participants who accepted an Alford plea said that they were influenced by the opportunity to maintain their innocence to a higher degree than did guilty participants, although very few articulated concerns with how *others* would view them. Only a small portion of Alford participants elaborated on this in their open-ended responses (14 in Study

1, five in Study 2), speaking of how the ability to maintain innocence made their plea decision easier. As one participant put it, “Additionally, being able to leave that letter in the file saying that although I am innocent, I am pleading guilty helped ease my mind a little on if it was the right call.” Another participant stated,

The ability to write on my record that I’m innocent in my intentions. This would at least make me feel better when there’s a way for me to “explain” what happened when someone looks at my record. It may not make a difference when someone is checking my record but it gives me a certain peace of mind.

In Study 2, one participant reported that they accepted an Alford plea because of “the idea that I would get to keep my innocence instead of lying to get less time.”

The mentions of “ease my mind” and “peace of mind” suggest the possibility that these participants might have felt some cognitive dissonance when faced with making a plea decision and that the opportunity to claim innocence via an Alford plea helped reduce this dissonance (Kraus & Chen, 2014; Swann et al., 1987). Although it is difficult to draw conclusions from these limited comments or discern the exact mechanism behind these statements, further research should aim to examine this more. Future studies could combine methodologies from the plea-bargaining literature as well as from traditional dissonance reduction literature (e.g., Steele & Liu, 1983) to further explore this potential relationship. It is interesting that for the lower stakes crime in Study 2, participants were more likely to be persuaded by an Alford plea. Although our findings provide no obvious explanation for this, we discuss two possible underlying factors for these results. First, our goal with Study 2 was to employ a more interactive methodology that was more consistent with a real-life plea situation. We made efforts to better explain to participants the Alford plea and what it entails. Participants were even required to type out

statements that corresponded with their plea and, if they felt they could not, were given the option to change their minds and reject the offer. Our findings may reflect that we were successful in enhancing the methodology. Perhaps participants better understood the Alford plea and its consequences and were therefore more sensitive to its implications, compared with participants in Study 1. This would also explain why our results differed from those of Fessinger and Kovera (2023), who also found null effects of plea type. Indeed, previous research that compared vignettes with the employed simulation revealed that participants considered the simulation to be more immersive (Wilford et al., 2025). These participants also expressed a higher likelihood of making a comparable plea decision in real-life situations following the simulation.

Another potential explanation, not incompatible with the first, could lie in the stakes and seriousness of the crime that participants were accused of and its potential consequences. In Study 1, participants risked 5 years of prison and a vehicular manslaughter conviction (like in the study by Fessinger & Kovera, 2023) if they were to be convicted at trial, whereas in Study 2, they risked 12 months of jail (with 6 months of probation) and a larceny conviction. When the consequences of conviction are lower, maybe participants are more sensitive to other factors, such as the ability to maintain innocence. Overall, participants in Study 1 were more likely to accept pleas and to cite wanting to avoid the risk of trial and a longer sentence, suggesting that they may have been more risk averse than participants in Study 2 (Bibas, 2004; Tor et al., 2010). The higher stakes in Study 1 might have led participants to prioritize the avoidance of a more serious criminal conviction and a lengthy prison term, potentially causing them to overlook the nuanced aspects of the Alford plea, such as the opportunity to maintain innocence. The Alford plea's potentially stronger impact in lower severity crime is especially important to consider

given that a substantial majority of criminal cases are misdemeanors rather than felonies (Stevenson & Mayson, 2018; Subramanian et al., 2020). Future research is needed to further understand how crimes of varying severity impact the effect that Alford pleas have on defendant decision making and whether innocent suspects charged with misdemeanors may be more at risk of falsely pleading than defendants charged with felonies.

Whereas few participants accepted Alford pleas overall, our focus was on the relative difference rather than the absolute difference in plea acceptance. In our study, the plea acceptance rate of those who were offered an Alford plea was 9.7% (compared with 2.9% for those who were offered a traditional plea). Not only is this difference significant, but it is important to note that even small percentages can represent large numbers of innocent defendants if applied to the real world. Although we cannot determine the exact number of innocent defendants who accept Alford pleas, the fact that the Alford plea may increase the rate of innocent people pleading at all is noteworthy and should raise concern.

Implications

Being that this article is one of two to empirically examine the impact of the Alford plea, these implications are preliminary. However, we hope that these findings are a first step in identifying next steps to shed additional light on the Alford plea. Our findings have important implications both for potential defendants and for policymakers. First, our results indicate that the Alford plea may play a role in exacerbating the innocence problem, lending further credence to some legal scholars' concerns (Diehm, 2015; Ward, 2003). The findings suggest that the opportunity to maintain innocence via an Alford plea might appeal to innocent individuals who would otherwise reject a traditional plea. This underscores the psychological significance and

legal value that individuals place on preserving their innocence, even when the legal consequences remain identical.

Moreover, the preference for the Alford plea in maintaining innocence may indicate a perception among participants that such a plea could provide them with a strategic advantage or protection in the legal process long term. Although there may be situations in which accepting a plea is arguably in the best interest of an innocent defendant to avoid pretrial detention and the uncertainty of trial (Bowers, 2008), the Alford plea has also been found to lead to worse outcomes (both direct and collateral) compared with a traditional plea (Dezember & Redlich, 2024; Hellgren, 2021). Our findings also indicate that most laypeople are unaware of the Alford plea and may hold misconceptions about its long-term consequences, which could impact their decision making if they are ever faced with an Alford plea. Although we did not directly manipulate the impact of knowledge or awareness of the Alford plea on plea outcomes, we encourage future research to examine this important question more directly. Evaluating whether further education about Alford pleas' long-term effects impacts the rate at which individuals accept this plea could shed light on how more holistic decision making might improve plea outcomes.

Given the challenges in determining the true prevalence of the Alford plea due to limited official statistics, there is a pressing need for initiatives to establish a national database. Such a database would serve to assist both researchers and legal professionals in gaining a more comprehensive understanding of their frequency and could offer insight into patterns of utilization, regional variations, and potential disparities in the application of the Alford plea. The Wilson Center for Science and Justice at Duke Law and the Crime and Justice Policy Lab at the University of Pennsylvania have recently begun collaborating with local district attorney offices,

aiming to enhance transparency and analyze trends in plea bargaining (Grodensky et al., 2023; Nguyen, 2022). These collaborative efforts represent positive steps that should be expanded to other jurisdictions.

Limitations and Future Directions

The present studies explored the Alford plea and how it impacts mock defendants' decision-making process. This research is limited in important ways. As is true for much research in the field of psychology and law, it is difficult to simulate a real-life plea decision-making situation. As mentioned above, the differences between our two studies may be a reflection of this. Although we did not find the predicted effect of Alford pleas in our first study, we used a more interactive methodology (Wilford et al., 2025) in our second study and found our predicted effect. That said, the consequences in both studies, despite employing different methods, were hypothetical—a limitation of most experimental research in this arena. Clearly, further research using varied methodologies, such as high-stakes laboratory studies in which the participants perceive stakes to the decisions they make (see Aronson & Carlsmith, 1968), is needed. This would enable researchers to better triangulate the real-world effect of the Alford plea on decision making. Nevertheless, despite these limitations, we found false guilty plea rates in Study 1 equal to those in similar studies (Redlich, Wilford, & Bushway, 2017), a fact that is both interesting and disturbing. Thus, future studies should explore how different crime scenarios with varying levels of relevancy to the participants influence false guilty plea rates.

In Study 2, our false guilty plea rates appeared notably lower (~11.2%) compared with similar studies (e.g., Henderson et al., 2023; Wilford, Sutherland et al., 2021; Yan et al., 2022). However, on closer examination of the data, it appears that our study participants regarded their probability of trial conviction as relatively low ($M = 35.5\%$, $SD = 23.3\%$). Thus, it is possible

that the defense attorney statements that we added in which he directly undermined the evidence by stating that it was ultimately ambiguous (to avoid confusion regarding participants' innocence or initial plea rates being too high) might have reduced participants' perceived likelihood of conviction, thereby reducing their willingness to plead. In fact, the plea rate that we observed was similar to those observed by Wilford, Sutherland et al. (2021) when innocent participants were told (by their defense attorney) that their conviction probability was 20% (plea rates were 4.4%–11.4%). This finding seems to demonstrate that participants' evaluation of evidence strength can be easily swayed by appraisals from their attorneys (further underscoring the importance of attorney-client communications; Campbell & Henderson, 2021).

Furthermore, we offered participants the opportunity to change their minds regarding accepting a plea after they were prompted to write out a statement to increase the psychological realism of the manipulation. Although few participants changed their minds ($n = 4$), this, in part, contributed to a lower plea rate.

An additional limitation is that the participant samples were predominantly White/European American, which does not represent the realities of the criminal justice system. Recognizing the well-documented overrepresentation and differential treatment of minority groups within legal contexts (Haney-Caron & Fountain, 2021; Kutateladze et al., 2014), we find it plausible that individuals from diverse racial backgrounds may perceive the hypothetical scenarios used in this study differently. The acknowledgment of their race or ethnicity as an additional risk factor leading to more severe consequences was explicitly noted by two participants. One participant articulated this concern, stating, "Being a black man, I know the system won't favor me; I will definitely be convicted of the crime, even though I am innocent."

Future research should make efforts to remedy this limitation by using more diverse samples, in terms of demographics as well as criminal justice experiences.

In an attempt to more realistically mimic a real-world situation, we offered two plea deals to participants. As a result, those who rejected the first plea may have felt some pressure to accept the second one. In fact, this was mentioned by a handful of participants in the open-ended responses (e.g., “By the second offer I was feeling more worn down and not as angry”). On the other hand, multiple plea offers could signal to participants (and defendants) that the case is weak, which was also mentioned by a handful of participants (e.g., “If they offer two plea deals, they may believe that their case is weak”). Because multiple plea offers are fairly common, future research should further explore the effect of multiple plea deals and how it may influence defendant decision making, especially in terms of what it signals regarding the case because this has consistently been found to be a strong predictor of plea decisions (Bushway, Redlich, & Norris, 2014; Henderson, 2021).

Finally, future research should explore the unique decision-making process that takes place when wrongfully convicted individuals are faced with an Alford plea. Prosecutors can use the Alford plea as a tool in cases in which a wrongfully convicted individual has been granted retrial and they want to avoid acquittals (as in the case of the West Memphis Three; Blume & Helm, 2014). As can be expected, many individuals who have spent years, if not decades, incarcerated have been persuaded by the offer of a quick resolution to their case and the promise of freedom. On its surface, the Alford plea can seem like an attractive alternative because these individuals can state their innocence for the record. But it is important to remember that an Alford plea is not an exoneration and bars these individuals from, among other things, receiving compensation from the state.

In addition, previous research has found that Alford defendants tend to receive longer sentences than their traditional plea counterparts (Dezember & Redlich, 2024) and are subject to more widespread stigma compared with defendants accepting traditional pleas (Hellgren, 2021). Furthermore, because Alford defendants do not admit guilt in their plea, they may be perceived as lacking remorse, which can also lead to more severe consequences within the legal system (Bowers, 2008; Ward, 2003). Because individuals who get fully exonerated still face many issues in terms of reintegration and societal support as well as public opinion (Clow & Leach, 2015; Kukucka & Evelo, 2019; Scherr et al., 2020), it is clear that the Alford plea might not be as beneficial an alternative to the traditional plea as perceived and may best be avoided, despite the psychological appeal of being able to maintain innocence. Notably, all the participants in our second study who accepted a plea would represent wrongful convictions (because they were all innocent).

Conclusion

Although our studies offered some answers, there are many interesting and exciting avenues left to explore. Several law review articles have critically discussed the Alford plea, but with little consensus as to its relative advantages and disadvantages (Bibas, 2003; Bowers, 2008; Diehm, 2015; Ronis, 2009). There are many unknowns about the Alford plea and its consequences, and it is clear that laypeople have limited—and sometimes erroneous—perceptions. Ideally, the current findings will assist with informing not only the public of the Alford plea but also judges, prosecutors, and defense attorneys, who may view the Alford plea as a viable way to resolve cases.

The United States has recognized Alford pleas for more than 50 years, yet there is much more that we need to understand regarding the impact of this plea on both decision makers and

legal actors. Further research and a better appreciation of the motivations to accept an Alford plea will help both future defendants and attorneys make more informed plea decisions.

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Table 1*Study 1 Plea Acceptance Rates by Condition*

Guilt Status	Traditional	Alford
Innocent	22.8% (23)	26.5% (27)
Guilty	76.7% (79)	79.0% (79)

Note. Numbers of participants are given in parentheses.

Table 2

Study 1 Analysis of Variance Statistics for the Influence of Guilt Status and Type of Plea on Confidence Ratings

Dependent Measure	Effect	<i>F</i>	<i>df</i>	<i>p</i>	η_p^2
Confidence	G	0.88	1	.346	.002
	T	4.39*	1	.037	.011
	G×T	0.426	1	.792	<.001

Note. G = guilt status; T = type of plea.

**p* < .001.

Table 3*Study 1 Frequency of Reasons for Acceptance or Rejection of the Plea Deal*

Reason	Accept	Reason	Reject
To avoid more severe consequences/uncertainty	68.3% (142)	I was innocent	61.3% (122)
I was guilty	42.3% (88)	I want to argue my case at trial	20.2% (40)
Too much evidence against me	22.6% (47)	Evidence will exonerate me	14.6% (29)
The opportunity to maintain innocence	6.7% (14)	It's just a study	11.1% (22)
It's just a study	5.3% (11)	Not enough evidence against me	10.6% (21)

Note. Numbers of participants are given in parentheses.

Table 4*Categories for Plea Decision Reasoning (Studies 1 and 2)*

Category
1. The opportunity to maintain innocence
2. The opportunity to appear innocent to others ^a
3. I am innocent
4. I was guilty/I wanted to take responsibility for my actions
5. To avoid more severe consequences/uncertainty
6. To get the process over with
7. To avoid criminal record
8. The consequences were not too bad
9. I want to argue my case at trial
10. No/not enough evidence against me
11. A lawyer will help me
12. Evidence will exonerate me
13. Too much evidence against me/no evidence of my innocence
14. Too extreme/It's just a study ^a
15. Avoid any jail ^b

^aThis reasoning category was included only for Study 1. ^bThis reasoning category was included only for Study 2.

Table 5*Study 2 Frequency of Reasons for Acceptance or Rejection of the Plea Deal*

Reason	Accept	Reason	Reject
To avoid more severe consequences/uncertainty	60% (12)	I was innocent	31.3% (102)
The opportunity to maintain innocence	25% (5)	To avoid criminal record	13.2% (43)
The consequences were not too severe	25% (5)	Not enough evidence against me	12.0% (39)
Too much evidence against me	25% (5)	I would not accept a deal with any jail time	8.3% (27)
		I want to argue my case at trial	3.1% (10)

Note. Numbers of participants are given in parentheses.

Figure 1

Avatar Customization Page

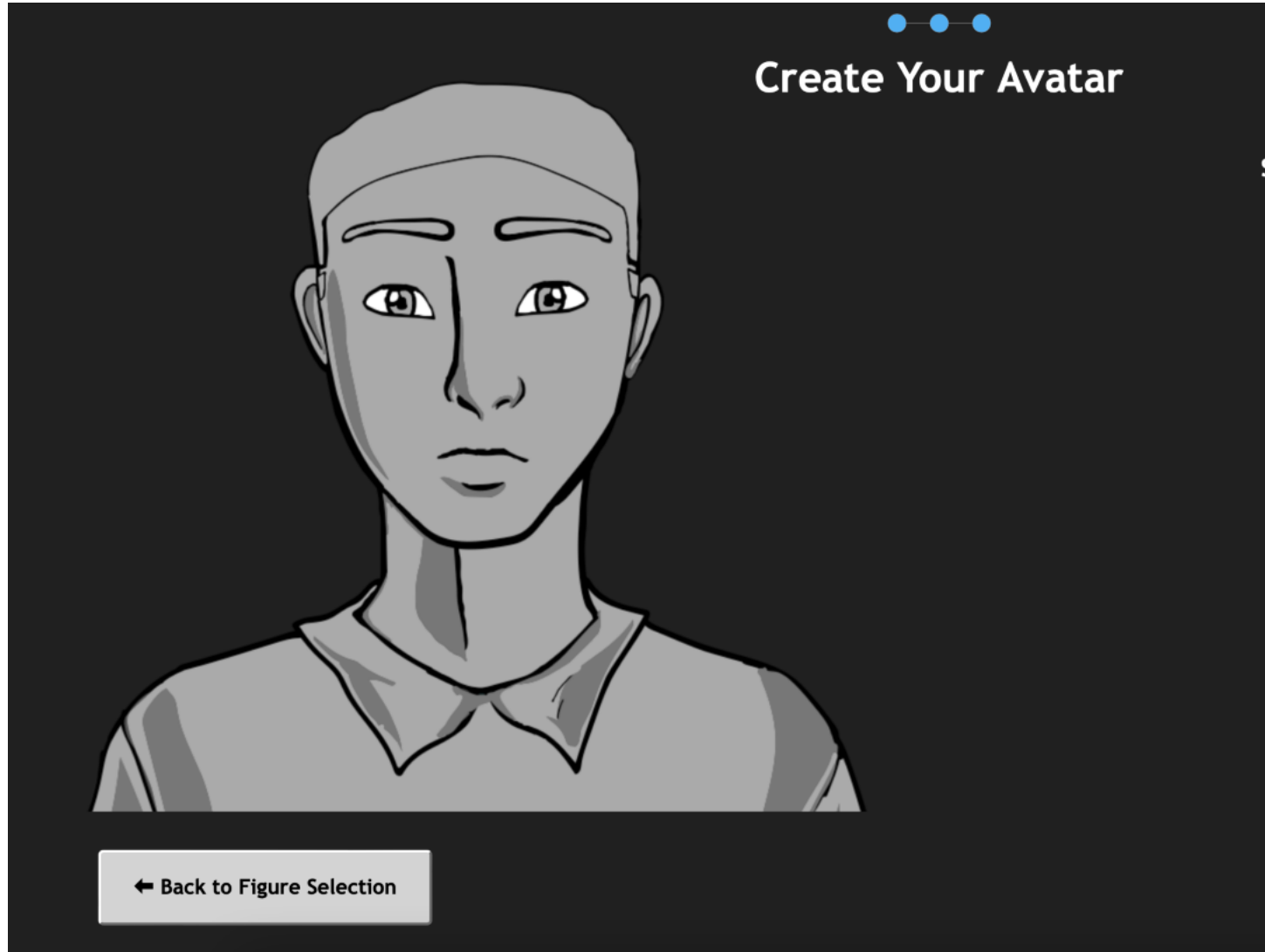


Figure 2

Participant Avatar Walking Out of the Store Without the Sunglasses



Figure 3

Participant Avatar Thinking Back to the Day of the Incident and Confirming Their Innocence



Figure 4

Defense Attorney Explaining the First Traditional Plea Deal

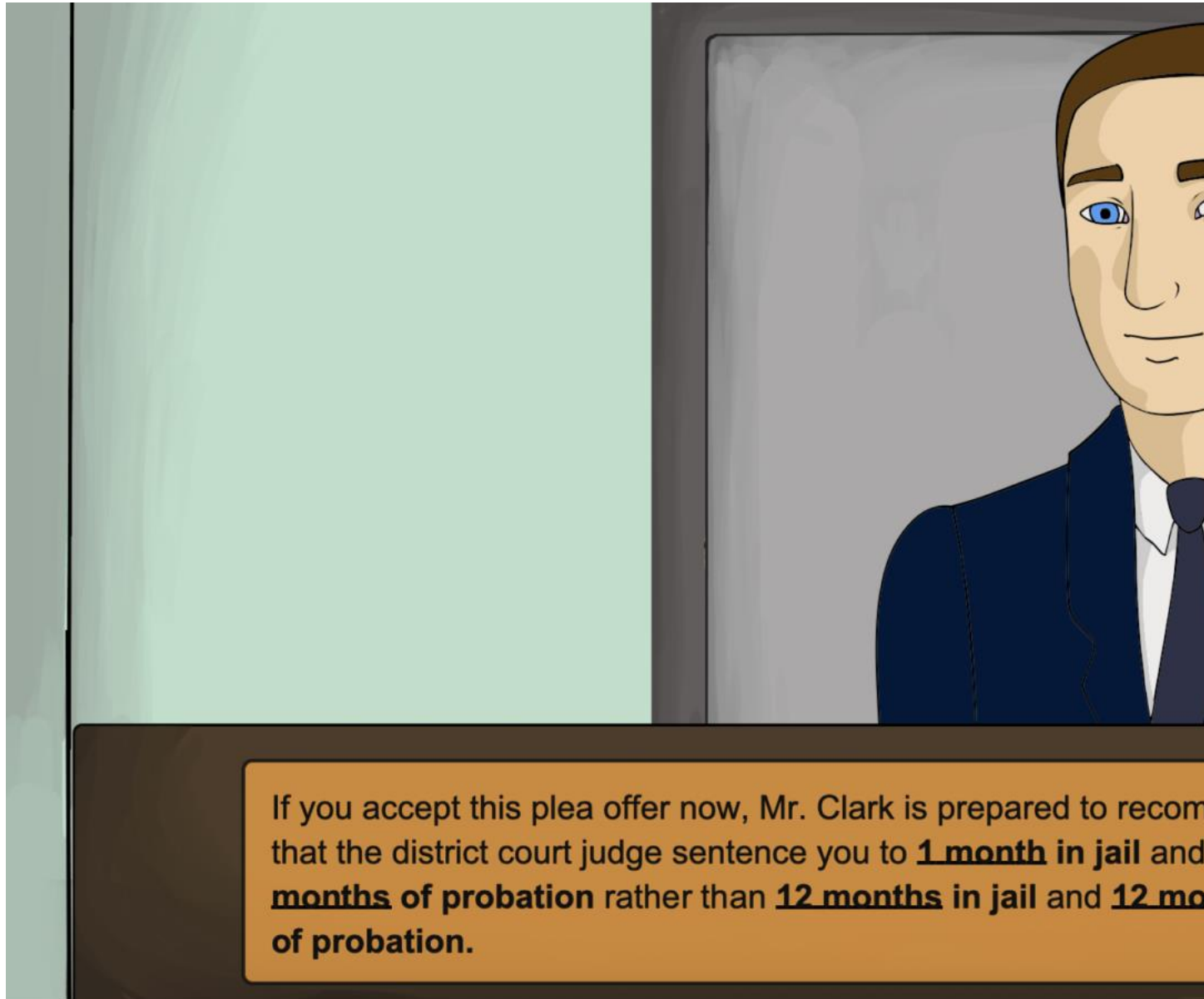


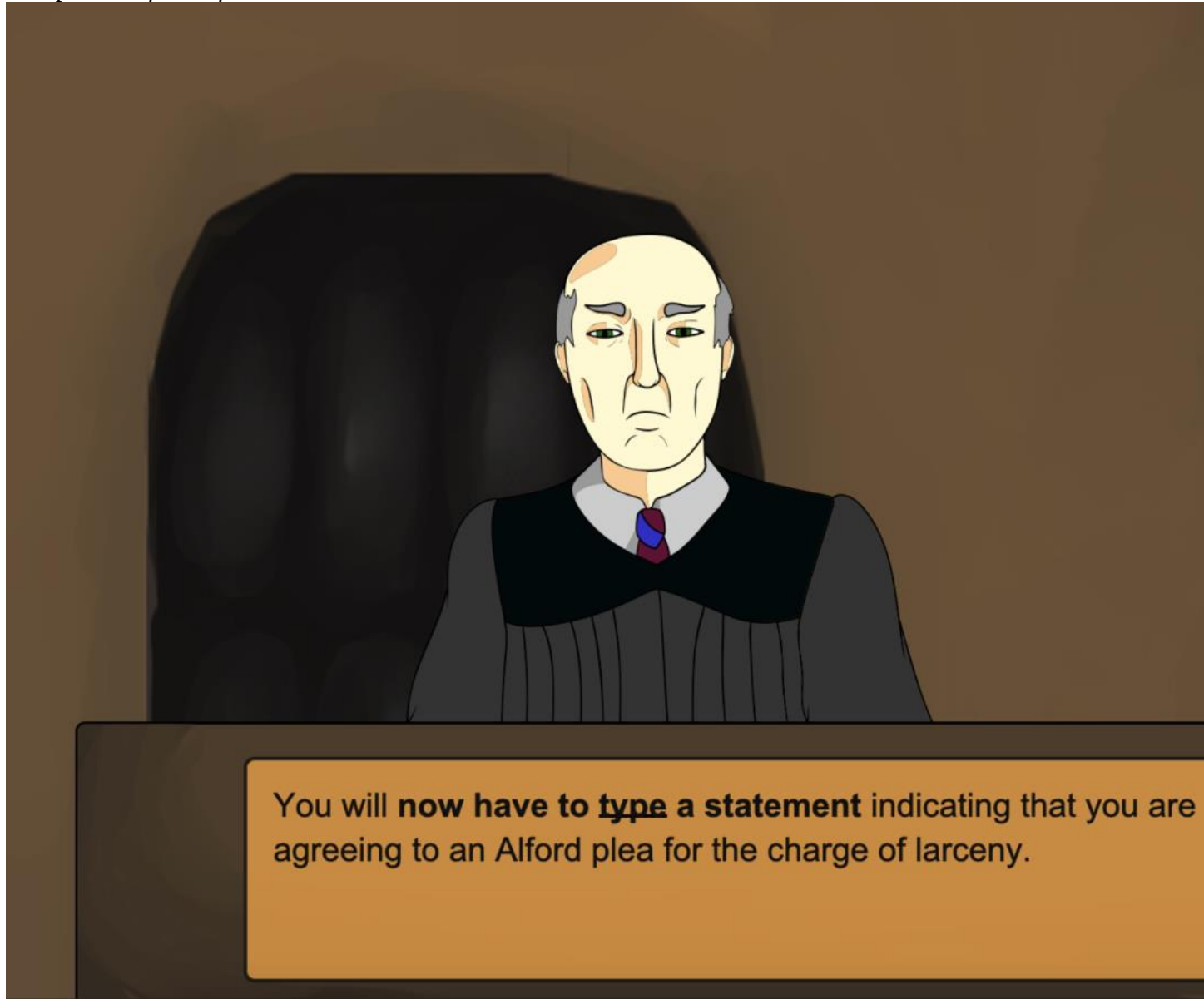
Figure 5

Defense Attorney Explaining the Difference Between Traditional Plea Deal and Alford Plea Deal for Second Offer



Figure 6

Judge Telling the Defendant That They Will Have to Type a Statement Affirming Their Acceptance of an Alford Plea



Appendix

Study 1—Vignette

I. Set Up

It's summer and you are invited to an early dinner with two friends from college at their house.

You haven't seen them for several months, and you are excited to spend some time with them.

You get into your car to drive over and arrive early in the evening. Your friends have prepared a great meal, from appetizers to dessert, and you have a fun night together catching up, with great conversations and games.

You have to get up early the next morning, so you don't drink any alcohol and you make it a point to leave before it's totally dark out.

After agreeing to meet up again soon, you say your goodbyes, get into your car, and drive off.

II. The "Crime"

You are tired and eager to get home. As you turn right on a sharp corner, you feel a loud thump.

Immediately, you get out of the car and see that you have hit an old man. He is sprawled on the street and unconscious.

A. Guilty

Imagine yourself in that situation. You were driving a lot faster than the speed limit—and you knew it. If you had been driving slower, you may well have seen the pedestrian and avoided hitting him.

OR

B. Innocent

Imagine yourself in that situation. You were driving at or below the speed limit—and you knew it. You did nothing wrong. But the pedestrian appeared out of nowhere, so you had no chance to stop and avoid hitting him.

You call 911, and within five minutes, the police and an ambulance arrive at the scene. The ambulance takes the man to the hospital. At this point, the police ask if you would be willing to go with them to the station: “We just want to get a statement from you.” You agree and they put you in the back of the patrol car.

III. Accusation

Once you arrive, you are left alone in an interview room for fifteen minutes. At that point, a police officer returns and says:

“We were just informed that the man you hit died on his way to the hospital. The medical examiner tells us that his injuries were caused by a high-impact collision. It is clear to us that you were speeding if not worse. This is a serious matter. We spoke to the prosecutor. She is planning to charge you with involuntary manslaughter.

The law defines involuntary manslaughter as the unintended killing of a person by acting in a reckless or negligent manner. This crime carries a sentence of up to five years in prison.

This means you will go to trial. If the prosecution convinces the jury that you were careless or reckless, you will be found guilty and sentenced for up to five years in prison. If the prosecution fails to convince the jury, you walk free.”

IV. Plea Offer

Free on bail, you call a public defender to advise you. He comes back and reports that “The prosecutor has offered you a deal: She will reduce your total sentence if you plead guilty to the offense of involuntary manslaughter.” You hesitate and shake your head. At this point, your attorney contacts the prosecutor again, who offers this alternative and final offer:

A. Guilty Plea

“If you plead guilty,” you will be required to 6 months in a county prison. You will not need to go to trial. The guilty plea will go on your record but once you’ve served the time, you’re done.

“If you do not accept the plea offer,” you will be charged with involuntary manslaughter and tried within the next several weeks. If you are found guilty, the judge will determine what larger punishment is appropriate (3–5 years in prison). If you are acquitted, you walk free.

OR

B. Alford Plea

“If you plead guilty,” you will be required to serve 6 months in a county prison. You will not need to go to trial. The guilty plea will go on your record but once you’ve served the time, you’re done.

Then he adds: “The prosecutor has agreed that you could also handwrite on the agreement that while you accept the plea and its terms, you are, in fact, innocent—not careless, reckless, or otherwise impaired. You would still serve the 6 months in prison, but the statement of your innocence would also go on your record.”

“If you do not accept the plea offer,” you will be charged with involuntary manslaughter and tried within the next several weeks. If you are found guilty, the judge will determine what larger punishment is appropriate (3–5 years). If you are acquitted, you walk free.